

IN THE DISTRICT COURT OF THE THIRD JUDICIAL DISTRICT OF THE STATE OF
OKLAHOMA SITTING IN AND FOR GREER COUNTY

THE STATE OF OKLAHOMA,
Plaintiff,

vs.

Case No. CF-2022-57

ASHLEY NICOLE WAFFLE
ALIAS: ASHLEY NICOLE BARRERA
Last four digits of SSN: ***-**-3236
DOB: March, 2000
Defendant(s).

FILED

JUN 26 2024

GREER COUNTY OKLAHOMA DIST. COURT
JEANNA SCOTT, COURT CLERK
By _____ Deputy

JUDGMENT AND SENTENCE

Now, on this 6th day of June, 2024, this matter comes on before the undersigned Judge for sentencing and the Defendant, ASHLEY NICOLE WAFFLE, ALIAS: ASHLEY NICOLE BARRERA, appears personally and by her attorney, Cole McMahan, the State of Oklahoma represented by Damon Cagle, and the Defendant, having previously ENTERED A PLEA OF NOLO CONTENDERE: to/of the crime(s) of:

COUNT 1: VIOLATION OF OK STATUTE VIA COMPUTER, a FELONY, 21 O.S. § 1958, committed on or about the 25th day of October, 2022 and 9th day of November, 2022.

COUNT 2: VIOLATION OF OK STATUTE VIA COMPUTER, a FELONY, 21 O.S. § 1958, committed on or about the 20th day of October, 2022 and 9th day of November, 2022.

(X) IT IS THEREFORE ORDERED, ADJUDGED AND DECREED by the Court that the Defendant, ASHLEY NICOLE WAFFLE, ALIAS: ASHLEY NICOLE BARRERA is guilty of the above described offenses and is sentenced as follows:

TERM OF IMPRISONMENT WITH EXECUTION OF SENTENCE SUSPENDED

Count 1: Sentenced to a term of 5 years

Count 2: Sentenced to a term of 5 years

All of said term(s) of imprisonment suspended pursuant to the rules and conditions of probation entered by the court. Counts 1 and 2 **SHALL** run **CONCURRENT**.

Under the custody and control of:

(X) Oklahoma Department of Corrections.

IT IS FURTHER ORDERED, ADJUDGED AND DECREED BY THE COURT that in addition to the preceding terms, the Defendant is also sentenced to:

FINE

(X) The defendant shall pay a fine of:

COUNT 1 - \$500.00

COUNT 2 - \$500.00

(X) The defendant shall report to the District Court of Greer County within **180** days of release for a hearing on the defendant's ability to pay fines and costs pursuant to Section VIII of the Rules of the Court of Criminal Appeals, 22 O.S., Ch. 18.

VCA

COUNT 1: Victim Compensation Assessment \$100.00

COUNT 2: Victim Compensation Assessment \$100.00

COSTS, RESTITUTION, AND COURT APPOINTED ATTORNEY FEES

The defendant shall pay costs, fees, restitution, court appointed attorney fees, and other assessments in accordance with the schedule(s) attached as "Exhibits A & B" as applicable

SPECIAL RULES AND CONDITIONS OF PROBATION

Defendant is ordered to twenty-four (24) months of District Attorney supervised probation.

The defendant shall pay \$960 total in DA Supervision to the District Attorney's Office at the rate of \$40.00 per month for twenty-four (24) months beginning 30 days after the date of this Judgement and Sentence.

Defendant cannot volunteer or work at any school while on probation.

IT IS FURTHER ORDERED that judgment is hereby entered against the Defendant as to the fines, costs, and assessments set forth above.

The Court further advised the Defendant of her rights and procedure to appeal to the Court of Criminal Appeals of the State of Oklahoma, and of the necessary steps to be taken by her to perfect such appeal, and that if she desired to appeal and was unable to afford counsel and a transcript of the proceedings, that the same would be furnished by the State subject to reimbursement of the cost or representation in accordance with Title 22 O.S. § 1355.14. The Court further advised the Defendant that, in the event the above sentence is for a crime involving domestic violence where the Defendant is or was a spouse, intimate partner, parent, or guardian of the victim, or is or was involved in another similar relationship with the victim, it may be unlawful for him or her to possess, purchase, receive, transport or ship a firearm including a rifle, pistol or revolver or ammunition pursuant to federal law under Title 18 U.S.C. § 992(g)(8) or (9), or state law or both.

In the event the above sentence is for incarceration in the Department of Corrections, the Sheriff of Greer County, Oklahoma is ordered and directed to deliver the Defendant to the Mabel Bassett Correctional Center, Oklahoma, and leave therewith a copy of this Judgment and Sentence to serve as warrant authority of the Sheriff for the transportation and the imprisonment of the Defendant as herein before provided. The Sheriff to make due return to the clerk of this Court, with his proceedings endorsed thereon.

COURT CLERK'S DUTY

[TRIAL JUDGE TO COMPLETE THIS SECTION]

IT IS FURTHER ORDERED that the Clerk of this Court shall register or report the following circumstances in accordance with the applicable statutory authority:

(✓) As to Count(s) 14 2, the defendant is ineligible to register to vote pursuant to Section 4-101 of Title 26.

() Pursuant to Section 985.1 of Title 22, the Court departed from the mandatory minimum sentence of imprisonment as to Count(s) _____.

() As to Count(s) _____, the defendant is subject to the Methamphetamine Offender Registry requirements as set forth in Section 2-701 of Title 63.

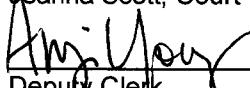
() As to Count(s) _____, the defendant is subject to the Mary Rippe Violent Crime Offenders Registration Act requirements as set forth in Section 594 of Title 57.

() Defendant is a lawyer and certified copies of this document shall be transmitted to the Chief Justice of the Supreme Court and the General Counsel of the Bar Association within five (5) days as set forth in Rule 7.2 of the Oklahoma Rules of Professional Conduct, 5 O.S.Supp.2014, ch. 1, app. 1-A.

WITNESS my hand the day and year first above mentioned.




Rafe Hall
Judge of the District Court

Jeanna Scott, Court Clerk

Deputy Clerk

CLERK'S CERTIFICATION OF COPIES

I, Jeanna Scott, Clerk of the District Court of Greer County, State of Oklahoma, do hereby certify the foregoing to be a true, correct, full and complete copy of the original Judgment and Sentence in the case of Oklahoma v. ASHLEY NICOLE WAFFLE, ALIAS: ASHLEY NICOLE BARRERA as the same appears of record in my office.

WITNESS my hand and official seal this _____ day of _____, _____.

Jeanna Scott, Court Clerk

(SEAL)

By: _____
Deputy Clerk

SHERIFF'S RETURN

I received this Judgment and Sentence the _____ day of _____, _____, and executed it by delivering the Defendant to the Oklahoma Department of Corrections at Mabel Bassett Correctional Center, on the _____ day of _____, _____.

I also certify the above prisoner has served _____ days in the County Jail on the present charge or charges.

Steve McMahan, Sheriff

Deputy Sheriff